

**IN THE UNITED STATES PATENT AND TRADEMARK OFFICE
BEFORE THE TRADEMARK TRIAL AND APPEAL BOARD**

klôtzzkètté Inc.,
Opposer,
v.
Klotzkettie LLC,
Applicant.

Opposition No. 91/289.412
App. Ser. No. 97/901.448
Mark: KLOTZKETTIE (Class 25)

NOTICE OF OPPOSITION

klôtzzkètté Inc., a Delaware corporation with principal place of business at 712 Fifth Avenue, 36th Floor, New York, NY 10019 (the „Opposer”), believes it will be damaged by registration of **KLOTZKETTIE** (App. Ser. No. 97/901.448) and hereby opposes the same pursuant to § 13 of the Lanham Act, 15 U.S.C. § 1063.

I. THE PARTIES

Opposer is the owner of the famous luxury fashion house klôtzzkètté, founded in Paris in 1923 by Antoine-Louis Klôtzzkètté, continuously used in U.S. commerce since 1958. Applicant Klotzkettie LLC (Wilmington, DE) is a recently incorporated entity with no history of commercial use prior to 2025.

II. GROUNDS FOR OPPOSITION

- Likelihood of Confusion (§ 2(d)):** KLOTZKETTIE is phonetically identical to KLÔTZZKÈTTÉ ([klôtzskèti] vs. [klôtzskèti]) and visually nearly identical. Both parties target the same consumer class in Class 25.
- Dilution (§ 43(c)):** KLÔTZZKÈTTÉ qualifies as a famous mark under Lanham Act § 43(c). Use of KLOTZKETTIE would constitute dilution by blurring (6-factor analysis, Mead Data Central v. Toyota Motor Sales, 2d Cir. 1989).
- Priority:** Opposer's U.S. common law rights predate Applicant's filing date by over 65 years. EUTM 005 412 880 cited as additional earlier right pursuant to § 44(d) of the Lanham Act.

III. RELIEF REQUESTED

Opposer respectfully requests that the TTAB sustain the opposition and refuse registration of App. Ser. No. 97/901.448 in its entirety.

New York, March 24, 2026

Respectfully submitted,

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